GROUNDS MAINTENANCE AND WASTE SERVICES CONTRACT

between **Castlebrook Borough Council** (the "Council") and **Northgate Facilities Services Limited** (the "Contractor"). Dated 1 April 2023.

1. Definitions

1.1 "Annual Contract Sum" means approximately GBP 14,400,000 per annum.

1.2 "Initial Term" means five (5) years from 1 April 2023 to 31 March 2028.

2. Term and Extension

2.1 The Contract commences on 1 April 2023 and continues for the Initial Term.

2.2 The Council may, at its sole option and by giving not less than six (6) months' written notice before expiry, extend the Contract for up to two (2) further periods of twelve (12) months each.

3. Services

3.1 The Contractor shall provide grounds maintenance, street cleansing and kerbside waste collection services in accordance with Schedule 1.

3.2 The Contractor shall meet the performance standards in Schedule 2. Failure to meet standards entitles the Council to deduct 1% of the monthly Contract Sum per failure, capped at 8% in any month.

4. Price

4.1 The Contract Sum shall be uplifted annually on 1 April by the lower of CPI and 4.0%.

4.2 Payment shall be made monthly within thirty (30) days of a valid invoice.

5. Termination

5.1 Either party may terminate for material breach not remedied within thirty (30) days of notice.

5.2 The Council may terminate this Contract for convenience at any time by giving not less than three (3) months' written notice, in which case the Council shall pay the Contractor's reasonable unamortised capital costs only.

6. Liability

6.1 The Contractor's total liability in each Contract Year shall not exceed one hundred per cent (100%) of the Annual Contract Sum.

6.2 Nothing limits liability for death, personal injury caused by negligence, or fraud.

7. Assignment and Change of Control

7.1 Neither party may assign or subcontract the whole or any part of this Contract without the prior written consent of the other.

7.2 The Contractor shall notify the Council of any change in its ownership. Notification does not give rise to any right of termination.

8. General

8.1 This Contract is governed by the laws of England and Wales.

Executed as an agreement. Signature blocks omitted in this synthetic version.